ORDAR HOUSING DEVELOPMENT CONSORTIUM
and
BENNY TANGAI MATENGA N.O.
versus
J MASAMVU AND FAMILY PRIVATE LIMITED

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE 4 and 11 February 2026

Opposed Application for rescission of judgment

C. T Manyani, for the applicant
M. Mangoi, for the respondent

MAMBARA J:

Background

[1] This is an opposed application for rescission of a default judgment that was granted by this court in case no. HCH5535/24. The applicants, Odar Housing Development Consortium and Benny Tangai Matenga N.O. (the latter cited in his representative capacity), seek to have the default judgment set aside. The respondent, J. Masamvu and Family (Private) Limited, stoutly opposes the application – with a stubborn tenacity that would make even the proverbial mule blush. The background can be summarized as follows.

[2] The dispute between the parties initially surfaced under case no. HCHC221/24, which was filed in the Commercial Division of the High Court. That matter was removed from the roll for reasons not particularly relevant here. Undeterred by the procedural hiccup, the respondent proceeded to re-issue the very same claim under case no. HCH5535/24, this time in the Civil Division. However, when it came to serving the summons in the reissued case, the respondent resorted to effecting service by affixing the process at 82 Selous Avenue, Harare – an address the applicants had previously occupied but had long since vacated. In contrast, when the respondent later pursued execution of the default judgment, it

miraculously directed the Sheriff to the applicants' current address at 91 David Livingstone Avenue, Harare. This turn of events is as ironic as it is telling: the respondent was ostensibly blind to the applicants' new address when it was time to serve court process, yet became eagle-eyed and pinpoint-accurate when it was time to send the Sheriff to attach assets. Such chameleon-like selectivity in matters of address can only be described as *convenient*.

[3] As fate would have it, the applicants remained in the dark about the proceedings in HCH5535/24. Not having been effectively notified of the summons or hearing date, they did not attend court. Predictably, the respondent obtained a default judgment. The applicants only became aware of the judgment when the Sheriff arrived at 91 David Livingstone Avenue armed with a writ of execution. One might imagine the applicants' consternation upon learning that a lawsuit had not only been pending against them, but had culminated in a judgment and execution – all while they were blissfully ignorant. They immediately sprang into action and filed the present rescission application with commendable promptitude. In doing so, the applicants demonstrated that they had no intention to let sleeping dogs lie; rather, they moved with alacrity to have their day in court. If anything, their conduct contrasts sharply with that of a dilatory litigant – no sooner had they gotten wind of the default judgment than they were knocking on the court's door for relief.

[4] The applicants' explanation for their default is straightforward and, on the face of it, reasonable: they were never effectively served with the summons commencing case HCH5535/24, since service was effected at an outdated address. They say that by the time the summons was left at 82 Selous Avenue, they were no longer there to receive it. It is significant that the respondent does not seriously dispute that 82 Selous Avenue was no longer the applicants' address. In fact, the respondent's own actions speak louder than words – its choice to use the 91 David Livingstone Avenue address for the writ of execution is a tacit admission that it knew, or at least readily ascertained, the applicants' current whereabouts. Yet, the respondent doggedly maintains that service at the old address was good in law, and on that basis seeks to hold the default judgment hostage. This overzealous reliance on service at an outdated address forms the crux of the respondent's opposition. It is a classic case of elevating form over substance – attempting to transform a *nail-on-the-gate* service into an impregnable fortress against justice. MATHONSI JA, known for his colourful turn of phrase, might have likened this to sending a letter to Santa Claus at an address you

know is abandoned, then professing surprise when you get no reply. The courts, needless to say, are not amused by such sharp practice.

[5] On the merits of the underlying dispute, the applicants aver that they have a bona fide defence with good prospects of success. The case revolves around rights to a certain parcel of land (referred to as "the stand"). The applicants assert that someone else – a one Gift Kazetete – is in occupation of the stand, and is doing so unlawfully in the sense that neither the applicants nor the respondent put him there. In other words, the applicants' position is essentially that *"we are not the ones in possession of the property you seek; the true intruder is a third party."* They argue that this third-party ought to have been joined to the proceedings, since any order for repossession or eviction would inevitably affect him. The respondent, however, refused to join Mr. Kazetete to the proceedings, insisting on forging ahead against the applicants alone. Why the respondent is avoiding engaging the actual occupant is anyone's guess – perhaps it found it tactically easier to obtain a default judgment against the absent applicants than to face the truly contentious opponent on the ground. Whatever the motive, the result is an anomalous judgment that purports to bind the applicants over a property occupied by another. It does not require an Einsteinian intellect to recognize that such a judgment might be problematic to enforce, to say the least.

[6] In summary, the applicants contend that they meet all the requirements for rescission of the default judgment: they have given a reasonable explanation for their failure to attend court (lack of proper notice), they have approached the court bona fide upon discovering the default judgment (with no intent to unnecessarily delay the respondent's claim), and they have a prima facie defence on the merits (centred on the rights and liabilities concerning the stand and its current occupier). The respondent's stance, on the other hand, is that the applicants were to blame for their own default alleging, perhaps, that they should have kept track of the reissued summons or updated their address, and that in any event their defence is meritless. With the stage thus set, the task before this court is to examine whether the applicants have shown "good and sufficient cause" for rescission under the law. Before diving into analysis, it is apposite to outline the legal principles governing rescission of default judgments in this jurisdiction.

[7] Rule 27(1) of the High Court Rules, 2021 (which largely mirrors the erstwhile Order 9 Rule 63 of the 1971 Rules) provides that a party against whom a default judgment has been

granted may apply to court for rescission of that judgment. The Rule requires the applicant to establish "good and sufficient cause" for the court to grant such relief. Over the decades, our courts have elucidated what factors constitute "good and sufficient cause." In the oft-cited case of *G D Haulage (Pvt) Ltd* v *Mumurugwi Bus Services (Pvt) Ltd* 1979 RLR 447 (A), Davies JA explained that although no exhaustive definition is possible, the court will normally take into account:

> "(a) the applicant's explanation of his default; (b) the bona fides of the application to rescind the judgment; and (c) the bona fides of the applicant's defence on the merits of the case",

with the understanding that the court considers these factors "in conjunction with each other and cumulatively." In essence, the applicant must proffer an acceptable explanation for the default, demonstrate that the application for rescission is made in good faith and not simply as a dilatory tactic, and show the existence of a prima facie defence on the merits which carries some prospect of success. All three elements are important and interrelated. As the High Court succinctly put it in *Majondo* v *Makwanya* HH 251/2017, an applicant for rescission cannot cherry-pick which requirement to satisfy – the indulgence will only be granted if the entire triad of elements is established.

[8] It is worth emphasizing that these requirements are conjunctive, not disjunctive. In other words, lacking any one of them can be fatal to the application. The Supreme Court has underscored this point in various contexts. For example, in *Kundai Magodora & Others* v *CARE International Zimbabwe* SC 24/14, it was observed that certain dual requirements of the law are *"conjunctive"* – meeting one without the other "does not suffice." By parity of reasoning, a party seeking rescission must cross all the hurdles: a reasonable excuse for the default, bona fides, *and* a credible defence. It is not enough to merely parade a strong defence while offering no explanation for the default, or to furnish a glib excuse with no arguable case to pursue. The trio of factors operate together to inform the court's discretion.

[9] Another foundational principle is that rescission of judgment is an indulgence, not a right. The applicant is effectively beseeching the court to be excused for a failure to follow the rules (in this case, the failure to defend timeously or attend court), so that the matter may be reopened. It follows that the onus is squarely on the applicant to show good and sufficient cause for that indulgence. Public policy values the finality of litigation – a default judgment brings a dispute to an end, and there is a legitimate interest in upholding such judgment

unless adequate reason is shown to set it aside. As the court noted in *Deweras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1998 (1) ZLR 368 (SC), the requirement of "good and sufficient cause" gives the court "a wide discretion" in rescission matters, and it is not possible to define it exhaustively. The flexibility of the standard means that each case must be decided on its merits, with the court endeavouring to do justice between the parties. Notably, *Deweras Farm* also makes the intriguing observation that even where a default is arguably wilful, there may still be situations that constitute good cause for rescission, perhaps arising from the *motive* behind the default or other extenuating circumstances. This signals that the court's discretion, while guided by principle, is ultimately aimed at fairness and equity.

[10] That said, our courts have repeatedly cautioned that if a default is clearly wilful or due to gross negligence, the door to rescission will ordinarily be closed. A litigant who deliberately turns their back on the court process cannot expect to be welcomed back with open arms. The classic definition of "wilful default" was provided by MURRAY CJ in *Neuman (Pvt) Ltd* v *Marks* 1960 (1) SA 170 (SR), where the learned Chief Justice stated:

> "The true test, to my mind, is whether the default is a deliberate one – i.e. when a defendant, with full knowledge of the set down and of the risks attendant on his default, freely takes a decision to refrain from appearing."

In short, if a party knowingly and freely chooses not to attend the hearing or file a pleading, being fully aware of the consequences, that party is in wilful default. Our law is not sympathetic to such litigants. As pointed out in *Du Preez* v *Hughes NO* 1957 R&N 706 (SR) and reaffirmed in *Arab* v *Arab* 1976 (2) RLR 166 (A), a wilfully defaulting party will generally be denied rescission. The rationale is simple: court orders must command respect, and one cannot cavalierly blow hot and cold with the court's process.

[11] Before turning to the facts at hand, one further legal point deserves mention. In any motion (application) proceedings – which include rescission applications – factual disputes are resolved on the papers using well-established rules. One such rule is that what a respondent does not deny in its affidavit is taken to be admitted. This principle, authoritatively stated in *Fawcett Security Operations (Pvt) Ltd* v *Director of Customs & Excise & Ors* 1993 (2) ZLR 121 (SC) at 127F, means that if an allegation is not specifically controverted, the court may proceed on the basis that it is common cause. The practical import here is that the respondent needed to candidly address the applicants' averments –

particularly regarding service of the summons and knowledge of the correct address – if it hoped to persuade the court that the default was due to the applicants' own fault. With these principles in mind, I now assess whether the applicants have met the three requirements for rescission in this case.

[12] The applicants have given a clear and credible explanation for why they did not attend to defend the claim in HCH5535/24. Simply put, they never received proper notice of the proceedings. The summons was left at an address where they no longer resided, and consequently they remained unaware of their need to appear in court. There is nothing to suggest that the applicants were hiding or avoiding service; on the contrary, the respondent *chose* a mode of service (affixing at 82 Selous Ave) that was unlikely to bring the lawsuit to the applicants' attention. The applicants cannot be blamed for failing to respond to a summons they never actually saw. In legal terms, their default was not wilful. It was not a conscious decision on their part to ignore the court process – one cannot decide to ignore what one is oblivious of. The *Neuman* v *Marks* test for wilfulness is not remotely met here. There is also no indication of gross negligence on the applicants' part; they had moved to a new address and, as soon as they discovered the judgment against them, they acted swiftly to remedy the situation. Indeed, the timeline speaks volumes: the default judgment was granted, the Sheriff enforced at the correct address, and the applicants promptly filed this application. This sequence is entirely inconsistent with any dilatory motive. It rather paints the picture of responsible parties caught unawares by an irregular service, then rushing in good faith to set things right.

[13] The respondent, for its part, strains to argue that service at 82 Selous Avenue was sufficient and that the applicants have only themselves to blame for not getting notice. That argument might have carried some weight if 82 Selous Ave had been the *last known* address of the applicants and if the respondent truly had no idea of any other address. But the undisputed facts undercut the respondent's position. It is uncontested that by the time of execution, the respondent had obtained and used the 91 David Livingstone Avenue address for the applicants. How did the respondent come by that information? The respondent is conspicuously silent on this point. If it emerged from the initial Commercial Court case (HCHC221/24) or other prior dealings, then the respondent was aware (or should have been aware) that 82 Selous was outdated. If it only discovered the new address post-judgment, it

shows at least that finding the applicants was entirely feasible with minimal effort. Either way, the respondent's failure to candidly explain why it resorted to affixing at an old address, when it ultimately had no trouble locating the applicants for execution, is telling. In motion proceedings, silence or evasion on a material allegation can be taken as an admission. Here, the respondent does not deny that 82 Selous was no longer the applicants' address; it merely insists that service there was legally permissible because it was the address that the parties agreed to use in the agreement of sale. That may be so in a technical sense – a litigant can sometimes get away with serving by affixing if that was the address provided earlier – but legal permissibility is not the same as reasonableness or fairness in the context of rescission. Our courts have decried the practice of "snatching a judgment" by taking advantage of a defendant's absence where the plaintiff could reasonably have done more to alert the defendant. The respondent's conduct in this case comes uncomfortably close to that frowned-upon stratagem. I am satisfied that the applicants have given a reasonable and acceptable explanation for their default. They were not wilfully absent; they were effectively ambushed by procedure. This element of the test is met.

[14] The applicants must show that their application for rescission is bona fide – in other words, that it is made honestly and in good faith, and not as a mere delaying tactic or abuse of process. On this score, the applicants acquit themselves well. The chronology reveals that the applicants acted with urgency and seriousness once they learned of the default judgment. They did not loiter or attempt to buy time; they came to court expeditiously. The application is detailed in its explanation and in its outline of a defence, indicating that the applicants genuinely seek a chance to contest the matter on the merits. There is no hint that they filed this application simply to frustrate the respondent or to drag their feet. In *Zimbabwe Banking Corp Ltd* v *Masendeke* 1995 (2) ZLR 417 (S), the Supreme Court remarked that where a defendant has no conceivable reason to let a claim go by default, a subsequent explanation that the default was due to error and not design should be readily accepted as bona fide. Here, it defies logic to suppose that the applicants *wanted* a default judgment to be entered against them only so that they could later go through the trouble of applying for rescission. The far more plausible inference is that they truly missed the boat unknowingly, and as soon as they discovered the situation, they boarded the lifeboat of rescission without delay. I find that the applicants' approach to this court is genuine. They honestly desire to have the dispute resolved on the merits, rather than to avoid or delay the inevitable. This conclusion is

bolstered by the fact that they could have sat back and done nothing – leaving the respondent to tussle with the rogue occupier – but instead they have come forward to engage with the litigation, which is the responsible thing to do. In sum, the application is bona fide. It is not a case of someone trying to play hide-and-seek with the justice system. There is no evidence of trickery or intent to hoodwink the court; on the contrary, the applicants are seeking to correct what appears to be a genuine procedural mishap.

[15] The third requirement is that the applicants demonstrate a bona fide defence to the respondent's claim, with at least some prospects of success. At this stage, the applicants are not expected to prove their case in full; they need only make a prima facie showing of a valid defence, one that is not frivolous or vexatious. The bar is not set extraordinarily high – the idea is to weed out hopeless cases, not to require a mini-trial within the rescission application. What, then, is the applicants' defence? It centers on the peculiar situation of the stand in question being occupied by a third party, *Gift Kazetete*. The applicants' position, as gleaned from their founding affidavit and draft plea, is essentially that they cannot be held liable for whatever relief the respondent seeks (be it eviction, transfer of title, or damages) when they are not in possession of the property and a third party is asserting rights or simply squatting there. They suggest that proper relief may require action against that third party, or at the very least, that the third party's involvement fundamentally alters the dynamic between the current litigants.

[16] On the face of it, this defence is neither far-fetched nor hopeless. If Gift Kazetete has indeed usurped the stand without colour of right, the applicants might argue that the respondent should direct its efforts toward ejecting that interloper rather than obtaining a paper judgment against the applicants, who have been side-lined by Kazetete's actions. Alternatively, if the dispute is about title or entitlement to the stand, the applicants might posit that any determination of rights cannot be fairly made without joining the person in occupation, who may claim some entitlement or at least will be directly affected by an order. There is a well-established principle in our law that all persons with a direct and substantial interest in the outcome of a case should be joined as parties, to avoid prejudice and to allow the court to fully and effectively adjudicate the dispute. The respondent's refusal to join Mr. Kazetete is likely to become a contentious issue at trial – and rightly so. It raises the question whether the respondent is seeking to bypass a tougher contest (with the occupier) in favour of

an easier target (the absent title-holder). These are triable issues. A court seized with the full matter might ultimately rule in the respondent's favour, but it might also find merit in the applicants' position that they are being blamed for a state of affairs caused by someone else. The merits of such a defence need to be properly ventilated in a trial, with evidence and, importantly, with all interested parties before the court. The default judgment currently in place did not do that; it was granted in a vacuum, as it were, without input from the applicants or the occupier. In *Muchabaiwa* v *Grab Enterprises (Pvt) Ltd* 1996 (2) ZLR 691 (SC), KORSAH JA invoked the old adage that a person who signs a contract is bound by the ordinary meaning of the words above his signature (echoing *Burger* v *Central South Africa Railways* 1903 TS 571 at 578). By analogy, one might say that the respondent is "bound" by the choice it made to ignore joining the occupier – it cannot now complain that the applicants' defence is a mere red herring. The defence has a ring of authenticity: it identifies a concrete factual scenario (a third-party occupier) that, if proved, could influence the relief available to the respondent or even the respondent's entitlement to relief against the applicants at all. This suffices to pass the threshold of a prima facie defence. Certainly, the court is not prepared to label the defence hopeless without hearing the evidence. To do so would be to countenance a manifest injustice, given that an unjoined occupant looms large in the factual matrix. I therefore find that the applicants have disclosed a bona fide defence with reasonable prospects of success in the main matter.

[17] In reaching the above conclusion, I have not lost sight of the respondent's arguments. The respondent submits, in broad strokes, that its claim against the applicants is well-founded and that the applicants' defence is a smoke-screen intended to evade responsibility. It argues that service was lawfully effected and that the default judgment is regular. However, the respondent's stubborn opposition to this rescission application seems to gloss over the fundamental imbalance that occurred: a judgment was obtained without a contest, under procedurally debatable circumstances. The respondent's tenacity in clinging to that judgment – much like a dog with a bone, growling at any attempt to prise it away – is understandable from a litigant's perspective, but it is not a stance the court can endorse if the interests of justice point towards a reopening of the matter. The respondent made much of the fact that it "played by the rules" by serving at the last known address (however outdated). But rules of service are not an end in themselves; they exist to ensure notice. Here, the rules achieved the opposite of their purpose – they allowed a critical notice to go unreceived. Procedure should

be the servant of justice, not its master, and certainly not an overbearing one with a whip. The respondent's overzealous attachment to the technicality of service at 82 Selous Ave, despite knowing full well where the applicants actually were, borders on elevating technical compliance over truth. Courts of law do not exist to provide a procedural playground for ambushes. They exist to adjudicate genuine disputes with all parties present if possible. In the final analysis, the respondent's opposition has an almost obtuse quality – as if wearing blinders to the obvious inequity that occurred. It brings to mind the adage that *"none are so blind as those who will not see."* This court chooses to see the situation for what it is: one calling for the intervention of rescission to allow the matter to be properly heard.

[18] I am satisfied that the applicants have met all the elements required for rescission. They have a reasonable explanation for their default, their application is bona fide, and they have shown a defence with some prospect of success. In reaching this decision, I have considered the cumulative impact of all factors. Even if one factor were slightly less convincing, the others bolster the case – but in fact here all three elements are robustly demonstrated. The justice of the case overwhelmingly favours giving the applicants their day in court. After all, the goal is not to reward a party for defaulting, but to ensure that a potentially *erroneous or unjust judgment* (obtained in the absence of one side) does not stand uncorrected. As was said in *Stockil* v *Griffiths* 1992 (1) ZLR 172 (SC), the courts are more inclined to grant rescission where it seems there *has been no wilful disregard of the court's process and there is a serious issue to be tried*. This is precisely such a case. Finality in litigation is important, yes; but finality must yield to fairness when the circumstances demand. The respondent will not be unduly prejudiced by having to prove its claim in a contested hearing – that is, after all, the normal course of litigation. On the other hand, the prejudice to the applicants if rescission were refused would be grave and irreparable: they would be held bound by a judgment they never had the chance to contest, and potentially forced to relinquish rights to a property currently held by a stranger to these proceedings. That would be a perversion of justice.

Conclusion and Disposition

[19] In the result, the application for rescission must succeed. The default judgment entered in case HCH5535/24 cannot be allowed to stand. The applicants have shown "good and sufficient cause" for it to be set aside. I would add that the respondent's opposition, while not frivolous on its face, was ultimately lacking in merit and somewhat unreasonable in the

circumstances – the respondent ought to have relented and perhaps consented to rescission once the true facts came to light. Instead, it chose to oppose to the bitter end. Consequently, an appropriate order as to costs should reflect that reality. Costs normally follow the result, and I see no cause to depart from that principle here. If anything, one might argue that the respondent's conduct justifies a punitive order of costs, but the applicants did not specifically pray for one, and it is generally prudent for courts to be moderate in granting punitive costs. Ordinary costs on the legal practitioner-client scale will suffice to indemnify the applicants for the expense of this application, given that they have had to come to court largely due to the respondent's intransigence.

[20] Accordingly, it is ordered as follows:

1. The default judgment granted under case no. HCH5535/24 on 23 July 2025 in favour of the respondent (J. Masamvu and Family (Pvt) Ltd) against the applicants is hereby rescinded and set aside.
2. The applicants are granted leave to defend the action in case no. HCH5535/24. The notice of intention to defend shall be filed within 10 days from the date of this order.
3. The costs of this rescission application shall be paid by the respondent on the ordinary scale.

MAMBARA J……..

TH Chitapi & Assocites, applicant's legal practitioners
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